

March 31, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 12373
(FOURTH REVISION)

EXPIRATION DATE: October 31, 2009

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: GE Energy Rentals, Inc.
Atlanta, GA
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of reconditioned ("used") refrigeration units under the provisions of § 173.306(e). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.306(e)(1) in that used refrigeration units are not considered "new (unused) refrigerating machines or components" and therefore not authorized for the exception except as specified herein.
5. BASIS: This special permit is based on the application of General Electric Energy Rentals, Incorporated dated January 3, 2006, submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Refrigerating machines, <i>containing non-flammable, non-toxic, liquefied gas or ammonia solution (UN2672)</i>	2.2	UN2857	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are used refrigerating machines. The used refrigerating machines must conform to the requirements of § 173.306(e) and be permanently affixed to a steel base structure suitable for placement on a double drop trailer. The Class A refrigerant weight per machine ranges from 50 lb. to a maximum of 2500 lb.

b. TESTING - In addition to the requirements contained in § 173.306(e), at least once every year, each used refrigerating machine must have satisfactorily passed and completed the GE Company's Maintenance Procedures on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA). A copy of the completed inspection report for each machine must be maintained at the GE Rental depot/facility and be made available to a DOT representative upon request.

c. OPERATIONAL CONTROLS - Prior to shipment of a refrigerating machine from a GE Energy Rental Facility, the refrigeration machine must have satisfactorily passed and completed the GE Company's inspection procedures set forth on the "Rental's Check Out Form" by GE qualified personnel. The "Rental's Check Out Form" procedures are on file with OHMSPA. A copy of the completed inspection report for each machine must be maintained at the GE Rental depot/facility and be made available to a DOT representative upon request.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the refrigeration machine is offered for transportation.

c. MARKING - The outside of each refrigeration machine must be plainly and durably marked in two inch letters "DOT-SP 12373" as prescribed in 49 CFR § 172.302(c).

d. Packagings permanently marked "DOT-E 12373", prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked "DOT-SP 12373".

e. Shipping papers displaying "DOT-E 12373" may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport refrigeration machines covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

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- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Porter", is written over a faint, larger signature that appears to read "R. A. McGuire".

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: S.Staniszewski/RP